

6 February 2023
Juror absent (bereavement)

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Housekeeping

Monday, 6 February 2023
(10.30 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Thank you, Mr Johnson. I think the information has been passed on that a juror has suffered a family bereavement and the indications are that that juror doesn't anticipate being available until Thursday.

I'm having enquiries made as to whether it is every day between now and Thursday, but I think realistically, on the information I have, the juror is not going to be here today, query tomorrow, query Wednesday, depending upon when the arrangements are made for, as I understand it. I'm just asking that the court is kept informed of that and we don't just wait until Wednesday.

I'm sorry this is going to cause inconvenience, but realistically, so far as told is concerned, I don't see there's any point in doing anything other than sending the jury home.

MR JOHNSON: No, my Lord, thank you.

MR MYERS: No, thank you.

MR JOHNSON: For your Lordship's information, the next case is [Baby J] and we had anticipated completing her case and the case of [Baby K] within about 6 working days. That means that with this delay, we are likely to run into the coincidence of the anniversary of [Baby K], which we understand may cause sensitivities, and so what we're proposing to do, if that is an issue, is to put over [Baby K]'s case until after [Babies L & M], just for your Lordship's information.

MR JUSTICE GOSS: Thank you very much. I understand the sensitivity. I think all we can do is just say let's wait and see where we get to when we get to it and we'll just take it --

MR JOHNSON: Of course. We thought just giving everybody as much warning as we can of possibilities means we can all adjust our arrangements accordingly.

MR JUSTICE GOSS: Thank you.

Nothing to say?

MR MYERS: Nothing to say, thank you.

MR JUSTICE GOSS: I'm just checking that the other jurors know why one of their number is absent. I didn't want to say anything out of turn. I will keep it as short as it needs to be.

(In the presence of the jury)

MR JUSTICE GOSS: Good morning, members of the jury. As you know, one of your number is absent, having suffered a family bereavement. And as you know from previous experience, we can't continue unless all 12 of you are here.

At the moment I don't have definitive information as to when we are going to be able to resume, but as far as today is concerned, I'm afraid that's it, you can go home. We are not going to be able to sit today.

Whether we can tomorrow or Wednesday, I don't as yet know. So it'll be the usual procedure of phone calls this afternoon as to whether you are required tomorrow and Wednesday or Wednesday. But I'm hopeful on the information I have that we will be starting, resuming, on Thursday as the worst case scenario in terms of not being able to sit between now and then, but I'm hoping we may possibly be able to sit on other days between now and then. All right?

So there we are. I've said to you more than once, we never know what's going to happen in life and these things happen, hence the inability, for that and a number of other reasons of which you're now well aware, to predict how long the trial is going to last.

You know the routine with the jury officer. Please just do as you're asked. You can go now. Remember your responsibilities as jurors: no communication with anyone about anything now until you gather all together as a group of 12, whenever that is, later this week. So don't talk about anything to do with this case to anyone, even to each other, before you're all together again as a group of 12, and obviously no research about anyone or anything to do with this case. Thank you very much indeed.

(In the absence of the jury)

MR JUSTICE GOSS: There is nothing else that can be done, is there, Mr Johnson, Mr Myers?

MR JOHNSON: I don't believe so.

MR MYERS: No, my Lord, not at the moment.

MR JUSTICE GOSS: Just be ready to proceed with the next evidence as and when we can. I know there's other work we can do, so we'll just do that. But as far as the defendant is concerned, just looking at whoever the senior officer there is, will you be wanting to see --

MR MYERS: Yes, my Lord, I'd be grateful today.

MR JUSTICE GOSS: When the hearing completes, one or more barristers will come down to see Ms Letby. I don't know how long they'll be, but I anticipate you'll be able to travel back to prison later this morning.

MR MYERS: Thank you.

MR JUSTICE GOSS: Thank you very much.

Mr Johnson, I'm quite happy just to take one of these three if others will --

MR JOHNSON: They come as a job lot, I'm afraid.

MR JUSTICE GOSS: All right, thank you.

(10.42 am)

(The court adjourned until a time and date to be determined)